

DEPARTMENT OF VETERANS AFFAIRS

Justification and Approval (J&A) For Other Than Full and Open Competition

Acquisition Plan Action ID: 36C241-26-AP-2096

1. **Contracting Activity:** Department of Veteran Affairs, VISN 01, VA Medical Center, Brockton, MA NCO 1 Contracting and Engineering Service
2. **Nature and/or Description of the Action Being Approved:** Request for the Award of a New Firm Fixed Price Contract to TAMCO, a Service-Disabled Veteran-Owned Small Business (SDVOSB) Vendor
3. **Description of Supplies/Services Required to Meet the Agency's Needs:** The Contractor shall furnish comprehensive supervision, labor, materials, equipment, and plans necessary for the installation of new doors, frames, and interlock devices at the Sallyports located in Wards 2-4-B, 2-3-B, 2-3-C, and 2-2-B.

Estimated Period of Performance: 270 days.

4. **Statutory Authority Permitting Other than Full and Open Competition:** 41 USC §3304(a)(5), 38 U.S. Code § 8127(c), as implemented by RFO 6.103-5 (Authorized or Required by Statute). COs may use the non-competitive (sole source) procedures authorized in [VAAR 819.7008 \(DEVIATION\)](#) or [VAAR 819.7009 \(DEVIATION\)](#)- up to \$5,000,000. Check the specific VAAR clause used below:

- (x) 819.7008 Sole source awards to a certified service-disabled veteran-owned small business; or
() 819.7009 Sole source awards to a certified veteran-owned small business

5. **Demonstration that the Contractor's Unique Qualifications and/or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):**
The use of VAAR 819.7008 does not require a determination that TAMCO is the only SDVOSB capable of performing this work. Rather, this statutory authority allows the VA to award a sole-source contract to a verified SDVOSB when the contracting officer (CO) has a reasonable expectation that the vendor is responsible and can perform at a fair and reasonable price. Information regarding TAMCO's relevant experience with similar projects and systems is provided for context and to demonstrate responsibility, but it is not the basis for the statutory authority cited.

TAMCO is a SDVOSB established in 2024. The principal individuals leading the company previously worked with Carrigg Commercial Building Company and were crucial team members on Project 523A5-07-123 (Patient Safety Phase II) completed on-campus. One of TAMCO's owners served as the Regional Director and the other as the Project Manager and Site Superintendent for this project.

During the Patient Safety Phase II project, the RACHIE System was installed on the Sallyport leading to the renovated ward. The RACHIE System, developed by Securitech, is an advanced entry and exit control system designed to ensure high-security operational and life-safety standards. It features a mantrap or sally-port setup, which includes a small vestibule with two interlocking doors that ensure only one door is open at any given time. This mechanism prevents unauthorized access and is critical for controlling entry into sensitive areas.

Given the complexity and operational requirements of the RACHIE System, it is paramount that the system's sequences of operation are executed correctly to ensure proper functionality. The key personnel at TAMCO are intimately familiar with the intricacies of the system, having previously handled its installation and addressed associated challenges. Their comprehensive knowledge includes the system, the manufacturer's specifications, and the unique considerations of implementing such a system within a mental health facility.

Additionally, the key personnel are very familiar with the VA Brockton mental health facility, its specific requirements, and the sensitivity of the space. Their prior experience at this facility equips them with a nuanced understanding of the operational considerations and heightened security and safety measures necessary within a mental health environment.

Performance ratings from their previous work on this project ranged from "Satisfactory" to "Exceptional," demonstrating their capability and reliability. Engaging TAMCO as the general contractor for the current solicitation would significantly benefit the government. Their proven expertise and familiarity with the system, the VA Brockton mental health facility, and the operational environment of such a sensitive space will ensure a smooth, efficient, and secure installation process.

6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable, including whether a notice was or will be publicized as required by [RFO 6.301](#) and, if not, which exemption under [RFO 5.101\(b\)\(1\)](#) applies:** To substantiate TAMCO's unique qualifications and ensure compliance with procurement regulations, market research was conducted. This research confirmed TAMCO's status as a SDVOSB and validated their unique expertise based on prior successful performance and installations of the RACHIE System.

To further adhere to procedural requirements, a notice of intent to award a sole source contract will be published on Contract Opportunities. This notice will inform the industry of the VA's intention to engage TAMCO for this project, providing transparency and opportunity for any potential challenges or feedback from the market.

7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:** The anticipated cost for this project will be evaluated for fairness and reasonableness by comparing it to previously awarded projects of similar scope within VISN 1. Example projects that will be used for cost comparison include the MHEOCC Upgrade at the West Haven, CT VAMC (Project No. 36C24125N0837) and the Patient Safety Phase II project at the VAMC Brockton, MA campus. These benchmarks will ensure a competitive and equitable pricing assessment.

8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:** Tamco has been verified in the Small Business Database as an SDVOSB. A copy of their capability statement will be included in the eCMS contract file. The procurement value will fall below the \$5 million threshold. Moreover, the vendor has met all criteria as stipulated in VAAR 819.7003.

As part of market awareness, the CO reviewed the Vendor Information Pages (VIP) database and identified multiple verified SDVOSBs listed under NAICS 236220 that are generally capable of performing construction work of comparable size and complexity. This confirms that the SDVOSB community remains viable for requirements of this type.

The CO determined that TAMCO meets all verification requirements under VAAR 819.7003 and has demonstrated technical capability and responsibility. A detailed IGCE and pricing analysis will be used to ensure the award price is fair and reasonable.

9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:** None, authority 38 USC 8127(c).

10. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:** As mentioned in item 6, a notice of intent to award a sole source contract will be published on Contract Opportunities to inform the industry of the VA's intention. Should other qualified SDVOSBs express interest in accordance with VAAR 819.70, the procurement strategy will be adjusted to an SDVOSB set-aside.

11. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:** As previously mentioned, a notice of intent to award a sole source contract will be published to inform the industry of the VA's plans. If other qualified SDVOSBs express interest, the procurement strategy will be adjusted to an SDVOSB set-aside.

12. **Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Neel Patel
Supervisory Healthcare Engineer, VA Boston Healthcare System

13. **Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP](#):**

- a. **Contracting Officer Certification:** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

Heather Libiszewski-Gallien
Contracting Officer, Network Contracting Officer 1
Veterans Health Administration